

Ghasita Singh v. Raj Pal Kushwaha

High Court of Judicature at Allahabad · Single Judge · 21 June 2021 · Contempt Application (Civil) No. 1712 of 2021 · Contempt Application (Civil) No. 1712 of 2021 · **Prima facie contempt; one month to decide the Clause 6.5 representation; application disposed with liberty to apply afresh.**

HEADNOTE

Civil contempt of a writ order that had relegated a bill-accuracy grievance to Clause 6.5 of the U.P. Electricity Supply Code, 2005. The consumer had moved the Executive Engineer and sent a reminder; the representation remained undecided. The Court found a prima facie case of contempt but did not examine the bill, granted one further month to comply, and disposed of the application with liberty to file afresh if the representation was still not decided.

FACTUAL SUMMARY

In Writ C No. 24145 of 2020, decided on 23 February 2021, Ghasita Singh's challenge to the accuracy of his electricity bill was disposed of by relegating him to Clause 6.5 of the U.P. Electricity Supply Code, 2005, before the Executive Engineer, Electricity Distribution Division-II, Mandawar, District Bijnor. He filed a Clause 6.5 application on 26 February 2021 and a registered reminder on 8 March 2021. Alleging that the opposite party had still not decided the representation, he moved this civil contempt application.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

contempt of Clause 6.5 relegation

HOLDING

Where a writ court has relegated a bill-accuracy grievance to Clause 6.5 and the consumer has applied to the Executive Engineer, a later contempt petition does not redecide the bill. Finding a prima facie case of inaction, the Court granted one further month to decide the representation and disposed of the contempt with liberty to apply afresh if it remained undecided. ¶ 1

PRINCIPLE TAGS

contempt-of-6.5-writ-does-not-redecide-bill Contempt of a Clause 6.5 relegation order: the Court did not examine bill accuracy, found prima facie non-decision of the representation, and gave one more month to comply, with liberty to file a fresh application if still undecided. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ACCURACY OF THE ELECTRICITY BILL AND MERITS OF THE CLAUSE 6.5 REPRESENTATION

The contempt court directed compliance with the earlier 6.5 relegation and did not decide the bill. ¶ 1